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DEMURRER WITHOUT

MOTION TO STRIKE

The Court tenders the following

tentative decision in the matter Maria Bravo v. Los Angeles General Medical Center, et al., Los Angeles County Superior Court case number 25STCV30967, set for hearing on September 2, 2026. County of Los Angeles (Defendant) demurs to multiple causes of action contained within Maria Bravo's (Plaintiff) first amended complaint (FAC). Plaintiff opposes demurrer. Defendant's demurrer is overruled.

A.

Legal Standard

In reviewing the legal sufficiency of a complaint against a demurrer, a court will treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of law. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318 (Blank); C & H Foods Co. v. Hartford Ins. Co. (1984) 163 Cal.App.3d 1055, 1062.) It is well settled that a "demurrer lies only for defects appearing on the face of the complaint[.]" (Stevens v. Superior Court (1999) 75 Cal.App.4th 594, 601.) "The rules by which the sufficiency of a complaint is tested against a general demurrer are well settled. We not only treat the demurrer as admitting all material facts properly pleaded, but also give the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38 (internal quotes omitted).) For purposes of ruling on a demurrer, the complaint must be construed liberally by drawing reasonable inferences from the facts pleaded. (Wilner v. Sunset Life Ins. Co. (2000) 78 Cal.App.4th 952, 958.)

When ruling on a demurrer, the Court may only consider the complaint's allegations or matters which may be judicially noticed. (Blank, supra, 39 Cal.3d at p. 318.) The Court may not consider any other extrinsic evidence or judge the credibility of the allegations plead or the difficulty a plaintiff may have in proving his allegations. (Ion Equip. Corp. v. Nelson (1980) 110 Cal.App.3d 868, 881.) A demurrer is properly sustained only when the complaint, liberally construed, fails to state facts sufficient to constitute any cause of action. (Kramer v. Intuit Inc. (2004) 121 Cal.App.4th 574, 578.)

When a demurrer is sustained, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (Blank, supra, 39 Cal.3d at p. 318.) When a plaintiff "has pleaded the general set of facts upon which his cause of action is based," the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not "be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars." (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.)

B.

Discussion

Defendant demurs to the following causes of action contained within Plaintiff's FAC on the basis that Plaintiff has not pled sufficient facts: (1) second cause of action for sexual battery; (2) third cause of action for sexual assault; (3) fourth cause of action for dependent adult abuse; and (4) sixth cause of action for sexual harassment. (Code Civ. Proc., § 430.10, subds. (e), (f).) Specifically, Defendant argues that it cannot be held vicariously liable for Plaintiff's second, third, and sixth causes of action and that Plaintiff has not demonstrated the required reckless neglect with respect to the fourth. The Court will address each argument in turn.

Plaintiff has pled sufficient facts to show Defendant may be held liable for Valentino's conduct under the doctrine of respondeat superior.

Defendant

argues that Plaintiff has failed to plead sufficient facts to hold it liable for the conduct of Valentino. Under the

doctrine of respondeat superior, “an employer is vicariously liable for the torts of its employees committed within the scope of the employment.” (Lisa M. v. Henry Mayo Newhall Memorial Hospital (1995) 12 Cal.4th 291, 296 (Lisa M.).) And in certain situations, “the employer may be subject to this form of vicarious liability even for an employee’s willful, malicious, and criminal conduct.” (Patterson v. Domino’s Pizza, LLC (2014) 60 Cal.4th 474, 491.) In such cases, the employee need not intend to further the employer’s interests, but there must be a causal nexus between the intentional tort and the employee’s work for the doctrine of respondeat superior to apply. (Lisa M., supra, at p. 297.) The tort must “be engendered by or arise from the work.” (Id. at p. 298.) An employer “will not be held liable for an assault or other intentional tort that did not have a causal nexus to the employee’s work.” (Id. at p. 297.)

In Lisa M., an ultrasound technician sexually battered the plaintiff, who sought to hold the hospital employing the technician vicariously liable. (Lisa M., supra, 12 Cal.4th at p. 294.) The Court acknowledged that the assault was causally related to the technician’s employment because it would not have occurred had they not been employed there. (Id. at p. 299.) It noted that “a sexual tort will not be considered engendered by the employment unless its motivating emotions were fairly attributable to work-related events or conditions.” (Id. at p. 301.) While the circumstances of the technician’s involvement with the plaintiff made exploitation possible, the technician’s decision to assault the plaintiff did not arise out of the performance of the examination. (Ibid.) Thus, the Court held that the respondeat superior doctrine did not apply. (Id. at p. 306.) It is worth noting that the decision at issue was determined on summary judgment, such that a factual record was developed unlike a demurrer which is based solely on allegations.

Plaintiff points to Samantha B.

v. Aurora Vista Del Mar, LLC (2022) 77 Cal.App.5th 85 (Samantha B.), as instructive. There, a defendant psychiatric hospital was held liable for the sexual assault of plaintiff patients by a mental health worker it had hired. (Id. at pp. 92–93.) The Court of Appeal noted that generally “an employer is not liable under the doctrine of respondeat superior for sexual assaults committed by an employee.” (Id. at p. 107.) The Court explained that a sexual tort “will be considered to be within the scope of employment if ‘its motivating emotions were fairly attributable to work-related events or conditions.’” (Id. at pp. 107–108 [citing Lisa M., supra, 12 Cal.4th at p. 301].) The Court reasoned that in Lisa M., the

motivating emotions for sexual assault were not attributable to work-related conditions with respect to the ultrasound technician. (Id. at p. 108.) In contrast, mental health workers helped patients with daily activities, were personally involved with them for an extended period of time, and the patients were vulnerable and could suffer from cognitive impairments. (Ibid.) It reasoned that “[s]exual exploitation of the patients by employees is a foreseeable hazard arising from the circumstances of the job. That hazard was exponentially increased by [Defendants’] policies, including allowing male workers 20 minutes alone with patients and providing inadequate training on worker-patient boundaries.” (Ibid.) The Court concluded that the defendant mental health worker constituted “a physician or therapist who becomes sexually involved with a patient as a result of mishandling the feelings predictably created by the therapeutic relationship.” (Ibid. [citing Lisa M., supra, at p. 303].)

The present case is more analogous to Samantha B. Plaintiff alleges that on October 23, 2024, while an inpatient at Defendant’s hospital, Defendant Valentino entered her room under the pretense of performing a nursing assessment. (FAC ¶ 27.) There, he sexually battered Plaintiff. (Ibid.) He was acting as a nurse within Defendant’s facilities at the time. (Id. ¶ 30.) Plaintiff alleges that Defendant is vicariously liable because the motivating conditions of the assault were attributable “to the work-related therapeutic caregiver relationship between Valentino and Plaintiff.” (Id. ¶ 34.) Further, she alleges that Defendant’s policy of permitting male nursing staff unsupervised access to severely incapacitated female patients without adequate monitoring or training on professional boundaries increased the foreseeability of the hazard that those in Valentino’s position would commit such acts. (Ibid.)

Just as in Samantha B., here Valentino acted as Plaintiff’s long-term caregiver for over 4 months. (Id. ¶ 32.) “Valentino was specifically assigned as Plaintiff’s nurse and whose duties included providing ongoing, intimate daily physical care to Plaintiff and performing nursing assessments involving authorized, direct physical contact with her person.” (Ibid.) And Plaintiff was severely incapacitated throughout this period. (Ibid.) Thus, just as in Samantha B., Valentino helped Plaintiff with daily activities for an extended period while Plaintiff was largely impaired. These circumstances do not permit a finding as a matter of law that the motivating emotions behind the assault were not “fairly attributable to work-related events or conditions.” (Lisa M.,

supra, 12 Cal.4th at p. 303.) Recognizing that these issues may be determined as a matter of degree, the Samantha B. court expressly noted that plaintiff is entitled to a jury determination whether the employee was acting within the scope of his employment. Thus, Plaintiff has pled sufficient facts to state causes of action for sexual battery, sexual assault, and sexual harassment against Defendant under the doctrine of respondeat superior. The Court need not address Plaintiff's other challenged theories of liability based on ratification or institutional negligence. Nor must the Court address Defendant's argument that Plaintiff has not shown reckless neglect with respect to the fourth cause of action for elder abuse: the discussion above demonstrates that Plaintiff has pled sufficient facts to state an elder abuse claim for physical abuse against Defendant under the doctrine of respondeat superior. Accordingly, Defendant's demurrer is overruled.

C.

Conclusion

The Court overrules

Defendant's demurrer. 30 days to answer.